

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION RULING

The
Data Protection Authority
decides
on
the
data protection complaint
of
Peter
A***

(the complainant), represented by the association B***, S***platz *4, **** Vienna, ZVR: *3*1*8*44, dated August 9, 2022 against N*** Publishing & Media, Inc. (the respondent), represented by C*** Rechtsanwälte GmbH, regarding A) the right to erasure and notification obligation in connection with the erasure, B) the request for an order against the respondent to cease unlawful processing, and C) the request dated December 30, 2022, to establish an alleged violation of the right to confidentiality, as follows:

1) The complaint is partially upheld regarding point A) and the respondent is ordered to inform, within a period of four weeks, the recipients who received the data mentioned in the factual finding C.4. (these are at least unique user identification numbers) during the website visit of the complainant on September 24, 2021 at https://www.runningsport***.com/ about the erasure of the respective data transmitted to them. The information must particularly be sent to the following recipients: J***Data, The***infoExchange.

2) The complaint is otherwise dismissed regarding points A) and B).

3) The complaint is rejected regarding point C).

4) The respondent is ordered ex officio to modify, within a period of 8 weeks,

a. the
cookie banner
(the request for consent)
of the website

https://www.runningsport***.com/
(see factual finding C.6.)

in such a way that a valid consent is obtained when visiting the website.

For this purpose, the respondent must modify the cookie banner at least so that on the first level of the cookie banner, next to the option "Accept," there is a visually equivalent option available to close the cookie banner without giving consent (e.g., "Reject" or "Close the cookie banner without consent");

b. to adjust its website https://www.runningsport***.com/ so that the withdrawal of consent for the cookies used (see factual finding C.6.) and the related processing of personal data is easily possible.

For this purpose, the respondent must include at least a notice in the cookie banner (see factual finding C.6.) indicating where the right of withdrawal can be exercised.

c. to modify its website https://www.runningsport***.com/ (see factual finding C.6.) in such a way that a valid consent is obtained for the processing of personal data related to analytical cookies (in particular J***Data Analytics).

Legal bases: Art. 3, Art. 4 No. 11, Art. 7, Art. 51 para. 1, Art. 12 para. 3, Art. 17, Art. 19, Art. 57 para. 1 lit. d and lit. f, Art. 58 para. 2 as well as Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 18 para. 1 as well as 24 para. 1, para. 2 No. 5, para. 4 as well as para. 5 of the Data Protection Act (DSG), BGBl. I No.

165/1999 as amended; § 165 of the Telecommunications Act 2021 (TKG 2021), BGBl. I No. 190/2021 as amended.

REASONING

A. Submissions of the parties and procedural history

A.1. In a submission dated August 9, 2022, the complainant (hereinafter: bP) summarized the following:

The

bP

visited

the website

of the respondent

(hereinafter: BG)

at https://www.runningsport***.com/ on September 24, 2021. The website displayed a cookie banner.

Cookies

were set,

partly

with

a unique user identification number

("unique ID").

A summary

of all

HTTP requests

and responses was attached as an annex. For all processing activities for which the BG wanted to establish a legal basis within the framework of the cookie banner, the term "relevant processing activities" is used. Due to the design of the mentioned cookie banner, several violations occurred. It cannot be assumed that there was a valid consent. It is requested that the BG be instructed to cease all relevant processing activities and to delete all relevant personal data. The GDPR allows the competent supervisory authority to issue an order that goes beyond the personal data of the bP. Several attachments were included with the submission.

A.2. In a letter dated December 30, 2022, the bP further stated essentially as follows:

The bP requests, pursuant to § 24 para. 2 No. 5 DSG in conjunction with § 1 DSG, to establish that the BG has violated the norms conclusively numbered for each type of violation. In the case of no longer ongoing unlawful data processing contrary to § 1 DSG in conjunction with Art. 5 GDPR, it concerns completed, past matters. The success of the legal violation is entered and personal data of the affected individuals have been forwarded to countless third parties. The relevant legal violations are therefore not subject to removal in the sense of § 24 Abs. 6 DSG.

A.3. In its statement dated May 15, 2023, the BG summarized the following:

The complaint of the bP is very general and lacks specific references to certain legal bases and case law regarding the alleged violations in many areas. For instance, the territorial scope is not even opened. There is no conscious and intended offering of goods and services in the EU within the meaning of Art. 3 Abs. 2 lit. a DSGVO. The addressed market is undoubtedly exclusively the US market.

The website offers news, features, reviews, and interviews primarily related to fitness and sports, particularly running. The website also refers to webshops of other companies where customers can purchase the presented products.

Due to the inapplicability of the DSGVO, there is currently no reason to make comprehensive changes to the design of the cookie banner. Rather, it complies with both market standards and relevant guidelines of European data protection authorities. Contrary to the blanket assertions of the complainant, neither the DSGVO, the DSG, nor the TKG, nor any other applicable legal bases currently provide more specific requirements for the design of consent declarations via cookie banners. The parameters derived from Art. 5 and 7 DSGVO regarding transparency and informational content are fully met.

The BG is currently reviewing its systems for the online identifiers mentioned in the complaint and will

take appropriate steps to delete this data, as far as the client is responsible for it. Several attachments were included with the statement.

A.4. In its statement dated June 15, 2023, the bP summarized the following:

The BG's assertion that the website is not aimed at an EU audience is incorrect. The BG also targets European users. Consequently, the territorial scope of Art. 3(2)(a) DSGVO is opened.

The BG continues to process personal data that is the subject of the complaint. Deletion has apparently not yet occurred. Even if partner companies are independent controllers, the BG must inform all recipients of the deletion in accordance with Art. 19 DSGVO. The alleged violations also continue to exist.

A.5. In its statement dated August 21, 2023, the BG summarized the following:

The BG has reviewed the systems it controls regarding the data cited in the complaint (name and cookie values). The BG deleted all cookie values on May 11, 2023. It can therefore confirm that all personal data for which it was responsible has been permanently deleted.

A.6. In its statement dated August 31, 2023, the bP summarized the following:

The bP maintains its requests in the complaint submitted on August 9, 2022, regarding the described violations and also refers to the declaration request from December 30, 2022.

B. Subject of the Complaint

B.1. Art. 58 DSGVO does not contain an explicit legal basis for an independent determination regarding the potential unlawfulness of a data protection-relevant processing operation (cf. VwGH of September 1, 2022, Ra 2022/04/0066). Consequently, the mere determination of a violation of a data protection-protected right according to (Art. 58 Abs. 6 DSGVO in conjunction with) § 24 Abs. 2 Z 5 in conjunction with § 1 DSG requires a request from the affected person.

For the subject of the complaint in the present case, these statements mean the following:

B.2. The bP did not submit a request in the sense of § 24 Abs. 2 Z 5 DSG with its submission dated August 9, 2022. Even in the subsequent statements, there was initially no reference to § 24 Abs. 2 Z 5 DSG—or to the DSG in general.

Only with the submission dated December 30, 2022, did the bP submit the supplementary request to determine that the BG has violated the norms "numbered conclusively for each type of violation" in accordance with § 24 Abs. 2 Z 5 DSG in conjunction with § 1 DSG—which ultimately amounts to a violation of the right to confidentiality. Consequently, a determination of a legal violation that occurred in the past must be made.

However, it must first be examined in this context whether the submitted request was already precluded at the time of December 30, 2022.

B.3. The subject of the complaint is also the request of the bP to order the BG to A) delete the personal data of the bP and inform the recipients of the deletion, and B) cease the "relevant processing activities."

With "relevant processing activities," the bP refers to all processing activities for which the BG sought to establish a legal basis in connection with the use of its cookie banner on September 24, 2021.

B.4. In the present case, it must first be examined whether the territorial scope of the DSGVO is opened and whether the data protection authority is thus fundamentally competent to handle the complaint.

C. Findings of Facts

C.1. Cookies can be used to collect information generated by a website and stored via the browser of an internet user. A cookie is a small file or text information (typically smaller than one kilobyte) that is placed on the hard drive of a computer or mobile device by a website through the user's browser. A cookie allows the website to "remember" the user's actions or preferences. Most web browsers support cookies, but users can configure their browsers to refuse cookies. They can also delete cookies at any time.

Websites use cookies to identify users, remember their preferences, and enable users to complete tasks without having to re-enter information when switching to another page or revisiting the website later. Cookies can also be used to collect information for targeted advertising and marketing based on online behavior. For example, companies use software to track user behavior and create personal profiles that allow them to show users ads tailored to their previous searches.

Assessment of Evidence C.1.: The explanations regarding the functionality of cookies are derived from the conclusions of the Advocate General in Case C-673/17, para. 36 et seq. with references. Since this is an independent and general technical description of the possible functions of cookies, these explanations were to be included at the factual level – and not in the legal assessment.

C.2. The BG operates the website https://www.runningsport***.com/. It decides under what conditions which cookies are set or read when the mentioned website is accessed.

The website offers news, features, reviews, and interviews related to fitness and sports, particularly running. The website also refers to webshops of other companies where customers can purchase the presented products. For instance, after clicking the "Shop" button, users are redirected to the British website https://www.n***publishing.co.uk/***runningsports-magazine-subscription-website?utm_source=***runningsports.com&utm_medium=referral&utm_campaign=us-websites. Here, the website visitor has the option to order a print edition of the articles available online to Austria.

Additionally, the website contains product links to webshops such as Amazon as well as advertisements. The links and advertisements are structured as follows (formatting not reproduced 1:1):

[Note by the editor: The screenshot of the website of the respondent presented here as a facsimile (graphic file) cannot be pseudonymized with reasonable effort and has therefore been removed.]

The website is not available in German.

Assessment of Evidence C.2.: The findings are based on the statement of the BG dated May 15, 2023, and an official investigation by the data protection authority on the website https://www.runningsport***.com/, last accessed on September 18, 2023.

C.3. The bP visited the website https://www.runningsport***.com/ at least on September 24, 2021. The cookie banner appeared on September 24, 2021, as follows (formatting not reproduced 1:1):

[Note by the editor: The screenshot of the website of the respondent presented here as a facsimile (graphic file) cannot be pseudonymized with reasonable effort and has therefore been removed. It is approximately reproduced as text content below. Square brackets correspond to buttons, and underlined characters correspond to links.]

"runningsport.***.com

N*** and third parties use cookies and similar technologies ("Cookies") on this site. Some Cookies are necessary to make this site and our content available to you. Other Cookies analyze and measure audience and traffic. Cookies are also used by us and third parties such as advertisers, ad-tech providers, and others ("Vendors") to develop and serve ads more relevant to your interests based on your consent or our legitimate interests. For a list of Vendors that can set Cookies on your device and browser when you interact with this site and the purposes for which Cookies are set by Vendors and us, click [Learn More](#) below. From time to time we may add or remove Vendors and/or Cookies. You can adjust your preferences including your right to object where legitimate interest is used, or withdraw your consent to certain Cookies at any time. We process personal data obtained through the use of Cookies (such as cookie identifier and/or IP address) for the purposes described in the Privacy Notice published on the site. To consent to the use of Cookies and proceed to the site, click [Accept](#) below. [...]"

[[Learn more](#)]

[[Accept](#)]

Assessment of Evidence C.3.: The findings are based on the submission of the bP dated August 9, 2022, and are undisputed. The screenshot is based on the attachments "banner.png" and "page.html" submitted by the bP.

C.4. As a result of visiting the website https://www.runningsport***.com/ on September 24, 2021, the following cookies were set and read on the device of the bP, which contained a unique, randomly generated value (random number):

Domain

Name

Value

Explanation

.**serv.com

*XCID

*8a6d*5***84f-

84ea4fa3d43a

The ***infoExchange ID (*XCID) is used to maintain web browser profiles over a longer period on various websites. The service is provided by The ***infoExchange Inc.

.ad*learn.org

J*ED

*iWz***V*i_*b4E**8*9

j*

The "J*ED" cookie is used to display J***Data advertising on websites that do not belong to J***Data.

.**more.org

pl*v

*O*pZ**rT9*A

This cookie does not store any direct personal information but is based on the unique identification of the browser and internet device.

The content of the attached document "cookies.json" (JSON file) serves as the basis for the factual findings.

Evidence Assessment C.4.: The findings are based on the submission of the complainant (bP) dated August 9, 2022, and the attached document "cookies.json." A JSON file is an archive format for HTTP transactions. The JSON file has been reviewed by the data protection authority. The submissions of the complainant are consistent with the archive data contained therein. The submitted JSON file (or its content) is known to the parties.

Furthermore, the findings are based on an official search of the website

https://www.***info-it.com/cookies/ (for the cookie "pl*v"),

https://policies.j***data.com/cookies?hl=de#***-cookies (for the cookie "J*ED"),

https://www.the***infoexchange.com/us/privacy (for the cookie "*XCID"), each queried on September 18, 2023.

C.5. At the current time, the BG does not store any cookie values that were set and read on the complainant's device as a result of the visit to https://www.runningsport***.com/ on September 24, 2021. Furthermore, the BG does not currently store the IP address of the complainant's device, which was temporarily stored in its log files as a result of the same visit. The BG has not informed the recipients of the data transmission (specifically, the service providers implemented on its website) about the deletion of the data mentioned in the factual finding C.4.

Evidence Assessment C.5.: The findings are based on the statement of the BG dated August 21, 2023. Following an explicit request from the data protection authority, the BG stated that it had conducted a search of its controlled systems. The search was based on the online identifiers mentioned in the complaint (including the IP address and names). There are no indications to doubt the submissions of the BG. The complainant has also not contested the BG's submissions in this regard. The factual findings are also supported by the inherent nature of cookies, which are generally automatically deleted after a certain period. There are also no investigative results that would justify a contrary finding.

In contrast, the BG has not sufficiently demonstrated that the recipients of the data transmission were informed about the deletion, although this is undoubtedly the subject of the complaint, and the BG was also provided with the complainant's initial submission in which the information of the recipients was requested. In fact, the BG has not presented anything further regarding the information of the recipients about the deletion. As further indicated in the legal assessment, the BG bears the burden of proof in this regard under the data protection accountability obligation according to the case law of the CJEU, and no evidence has been presented despite sufficient opportunity.

C.6. The BG has changed its cookie banner on the website https://www.runningsport***.com/. At the current time, the cookie banner of the BG is designed as follows (formatting not reproduced 1:1):

[Note from the editor: The screenshot from the website of the respondent, presented here as a

facsimile (graphic file), cannot be pseudonymized with reasonable effort and has therefore been removed. It is approximately reproduced as text content below. Square brackets correspond to buttons, and underlined characters correspond to links.]

“runningsport.***.com

N*** and third parties use cookies and similar technologies (“Cookies”) on this site. Some Cookies are necessary to make this site and our content available to you. Other Cookies analyze and measure audience and traffic. Cookies are also used by us and third parties such as advertisers, ad-tech providers, and others (“Vendors”) to develop and serve ads more relevant to your interests based on your consent or our legitimate interests. For a list of Vendors that can set Cookies on your device and browser when you interact with this site and the purposes for which Cookies are set by Vendors and us, click Learn More below. From time to time we may add or remove Vendors and/or Cookies. You can adjust your preferences including your right to object where legitimate interest is used, or withdraw your consent to certain Cookies at any time. We process personal data obtained through the use of Cookies (such as cookie identifier and/or IP address) for the purposes described in the Privacy Notice published on the site. To consent to the use of Cookies and proceed to the site, click Accept below.

[...]“

[Learn more]

[Accept]

Selecting the “LEARN MORE” option displays the following button (formatting not reproduced 1:1):

[Note from the editor: The screenshot from the website of the respondent, presented here as a facsimile (graphic file), cannot be pseudonymized with reasonable effort and has therefore been removed. It is approximately reproduced below as text content. Square brackets correspond to buttons, and underlined characters correspond to links.]

“***trust

Cookies Choices

Cookies and similar technologies (“Cookies”) are needed for the proper functioning of this site and to give you the optimum experience of our Services. Cookies are also used to develop and serve ads, content, or features that are more relevant to your interests. Please review the information below.

We share information with third parties such as advertisers, ad-tech providers, and others (“Vendors”) on the basis of consent and/or legitimate interest. You may exercise your right to consent or object to a legitimate interest for the purposes described below. Some of the Vendors have adopted the IAB Europe GDPR Transparency & Consent Framework (“IAB Framework”), which requires participants to adhere to the requirements and standards developed by IAB Europe. From time to time we may add or remove Vendors and/or Cookies.

You can decline most Cookies by clicking on the Decline button below. To decline certain analytics Cookies, you will have to use the links provided in the Strictly Necessary & Analytics Cookies tab. We are allowed to use certain cookies regardless of your choices, and we will use cookies to maintain your opt-out preferences. Note, if you do not consent to Cookies, some features of the site may not function correctly. You will still see ads on the site, but they will not be based on your interests.

We have described the categories of Cookies and Vendors used on this site in the tabs below. To adjust your preferences, please use the toggles. Cookie-level opt-outs are browser and device-specific.

[Decline]

[Confirm my choices]”

“***trust

level opt-outs are browser and device-specific.

[Accept]

Manage Consent Preferences

— Strictly Necessary & Analytics Cookies

Fired Automatically

Strictly necessary cookies are necessary for the website to function and cannot generally be switched off in our systems without negatively affecting page functionality. They are usually only set in response

to actions made by you which amount to a request for services, such as setting your privacy preferences, logging in, or filling in forms.

In addition, we use certain analytics Cookies to analyze and measure our audience, traffic, and engagement with the site. Those listed below are automatically enabled on our site and you can opt out at any time by following the instructions below.

To opt out J***Data Analytics: Click here to opt out of J***Data Analytics
(Cookies details (Non-IAB Vendors))

+

Marketing & Targeting Cookies

[yes/no]

+

Functional Cookies

[yes/no]

[Decline]

[Confirm my choices]"

At the bottom left of the website, there is the option "Cookie Choices." This is presented as follows (formatting not reproduced 1:1):

[Note from the editor: The screenshot from the website of the respondent, presented here as a facsimile (graphic file), cannot be pseudonymized with reasonable effort and has therefore been removed. It is approximately reproduced below as text content. Square brackets correspond to buttons, and underlined characters correspond to links.]

"A Part of N*** Digital Media

We may earn commission from links on this page, but we only recommend products we back.

©2023 N*** Publishing & Media, Inc. All Rights Reserved.

Privacy Notice

CA Notice at Collection

Your CA Privacy Rights/Shine the Light

DAA Industry Opt Out

Terms of Use

Site Map

[COOKIES CHOICES]"

Assessment of Evidence C.6.: The findings regarding the cookie banner are based on an official investigation by the data protection authority on the website https://www.runningsport***.com/, last accessed on September 18, 2023. The finding that the BG has adjusted the cookie banner is also evident from the file and is undisputed.

D. From a legal perspective, it follows that:

On the scope of application of the GDPR

D.1. On the scope of application of the GDPR

First, it must be examined whether the territorial scope of the GDPR is opened:

The GDPR primarily relates to the use of data within the establishment of a controller or a processor within the territory of the Union, but Article 3 of the GDPR expands the territorial scope of European data protection law.

Accordingly, the absence of an establishment in the Union does not necessarily lead to the exclusion of the processing activities of a controller based in a third country from the scope of the GDPR.

Article 3(2) of the GDPR states:

"This Regulation applies to the processing of personal data of data subjects who are in the Union by a controller not established in the Union."

****niedergelassenen Verantwortlichen oder Auftragsverarbeiter, wenn die Datenverarbeitung im Zusammenhang damit steht,****

a) ****betroffenen Personen in der Union Waren oder Dienstleistungen anzubieten, unabhängig davon, ob von diesen betroffenen Personen eine Zahlung zu leisten ist, oder****

b) ****ihr Verhalten zu beobachten, soweit dieses Verhalten in der Union stattfindet.****

Im gegenständlichen Fall kommen grundsätzlich Art. 3 Abs. 2 lit. a („Anbieten von Waren oder Dienstleistungen“) und Art. 3 Abs. 2 lit. b DSGVO („Verhaltensbeobachtung“) in Betracht.

****D.1.1. Zu Art. 3 Abs. 2 lit. a DSGVO („Anbieten von Waren oder Dienstleistungen“)****

Auch wenn der Begriff der „Ausrichtung einer Tätigkeit“ vom „Anbieten von Waren oder Dienstleistungen“ abweicht, hält der EDSA diese Rechtsprechung in der Rechtssache Pammer / Reederei Karl Schlüter GmbH & Co und Hotel Alpenhof / Heller (verbundene Rechtssachen C-585/08 und C-144/09) für hilfreich bei einer Prüfung der Frage, ob Waren oder Dienstleistungen einer betroffenen Person in der Union angeboten werden. Unter Berücksichtigung der besonderen Umstände des Falls könnten daher unter anderem folgende Faktoren berücksichtigt werden, möglicherweise in Verbindung miteinander:

- a) ****Die EU oder mindestens ein Mitgliedstaat wird unter Bezugnahme auf die angebotene Ware oder Dienstleistung benannt,****
- b) ****der Verantwortliche oder der Auftragsverarbeiter bezahlt einen Suchmaschinenbetreiber für einen Internetreferenzierungsdienst, um den Zugang zu seiner Website durch Verbraucher in der Union zu erleichtern, oder der Verantwortliche oder der Auftragsverarbeiter hat eine Marketing- und Werbekampagne gestartet, die sich an das Publikum in einem EU-Land wendet,****
- c) ****die internationale Natur der in Rede stehenden Tätigkeit, wie bestimmte touristische Aktivitäten,****
- d) ****die Angabe spezieller Adressen oder Telefonnummern, die von einem EU-Land zu erreichen sind,****
- e) ****die Verwendung eines anderen Top-Level-Domain-Namens als desjenigen des Drittlands, in dem der Verantwortliche oder der Auftragsverarbeiter niedergelassen ist, z. B. „de“, oder die Verwendung neutraler Top-Level-Domain-Namen wie „eu“,****
- f) ****die Beschreibung der Reiseinstruktionen von einem oder mehreren anderen EU-Mitgliedstaaten zu dem Ort, an dem die Dienstleistung erbracht wird,****
- g) ****die Angabe eines internationalen Kundenkreises, der aus Kunden mit Sitz in verschiedenen EU-Mitgliedstaaten besteht, insbesondere durch die Rechnungslegung durch diese Kunden,****
- h) ****die Verwendung einer anderen Sprache oder einer anderen Währung als der im Land des Gewerbetreibenden üblichen, insbesondere einer Sprache oder Währung eines oder mehrerer EU-Mitgliedstaaten,****
- i) ****der Verantwortliche bietet die Lieferung von Waren in EU-Mitgliedstaaten an (vgl. Leitlinien 3/2018 zum räumlichen Anwendungsbereich der DSGVO (Artikel 3) des EDSA vom 12. November 2019, S 20).****

Wie den Sachverhaltsfeststellungen entnommen werden kann (siehe C.2.), bietet die Website Nachrichten, Features, Rezensionen und Interviews, die sich auf Fitness und Sport, insbesondere Laufen, beziehen. Die Website verweist auch auf Webshops anderer Unternehmen, in denen Kunden die präsentierten Produkte kaufen können und besteht ausschließlich auf der britischen Website die Möglichkeit ein Printabonnement nach Österreich zu bestellen.

Demnach ist die Website für Besucher aus der EU ausschließlich „zugänglich“.

As already noted in Recital 23, third sentence of the GDPR, the mere accessibility of the website of the controller, an email address, or other contact details, or the use of a language that is commonly used in the third country where the controller is established, is not a sufficient indication of the territorial scope. Rather, other factors such as the use of a language or currency that is common in one or more Member States, in conjunction with the possibility of ordering goods and services in that other language, or the mention of customers or users located in the Union, may indicate that the controller intends to offer goods or services to individuals in the Union (see again Recital 23 of the GDPR).

It is generally agreed that a print subscription can be ordered via a link on the website; however, this assumption is not supported by the understanding of the territorial scope of the GDPR as per the aforementioned case law, since the possibility exists solely through accessing a British link. A targeting of the website in question towards a European audience cannot be derived from this; rather, it

suggests a European orientation of the British website.

The EDSA also holds the view that in processing activities related to the offering of services, the provision focuses on activities that are intentionally aimed at individuals in the EU, rather than unintentionally or randomly. If the processing relates to a service that is offered only to individuals outside the EU, but the service is not withdrawn when those individuals enter the EU, the corresponding processing is not subject to the GDPR. In this case, the processing is not related to an intentional targeting of individuals in the EU, but rather to targeting individuals outside the EU, which continues regardless of whether they remain outside the EU or visit the Union (see Guidelines 3/2018 on the territorial scope of the GDPR (Article 3) of the EDSA dated November 12, 2019, p. 17).

The EDSA also emphasizes that the processing of personal data of a natural person in the Union alone is not sufficient to trigger the application of the GDPR to processing activities of a controller not established in the Union (see Guidelines 3/2018 on the territorial scope of the GDPR (Article 3) of the EDSA dated November 12, 2019, p. 18).

D.1.2. Regarding Art. 3 para. 2 lit. b GDPR ("Behavioral Monitoring")

Notwithstanding this, Art. 3 para. 2 lit. b GDPR triggers the application of the GDPR insofar as it serves to monitor the behavior of affected individuals, provided that their behavior occurs in the Union (see also Recital 24). Unlike the provision of Art. 3 para. 2 lit. a GDPR, neither Art. 3 para. 2 lit. b GDPR nor Recital 24 explicitly state a necessary degree of "intentionality" on the part of the controller.

or the data processor to determine whether the observation activity would trigger the application of the GDPR to the processing activity (cf. Guidelines 3/2018 on the territorial scope of the GDPR (Article 3) of the EDPB dated November 12, 2019, p. 23). The EDPB does not believe that "every" online collection or analysis of personal data from individuals in the EU should automatically be considered as "observation." However, the use of the term "observation" implies that the controller pursues a specific purpose when collecting and subsequently reusing the relevant data about the behavior of a person in the EU (cf. Guidelines 3/2018 on the territorial scope of the GDPR (Article 3) of the EDPB dated November 12, 2019, p. 23).

Since suitability is key, the motivation of the controller is irrelevant. Therefore, observation also occurs when the controller primarily aims to understand the technical processes on its website, but processes personal data in a manner that makes the internet activities of a data subject traceable (cf. Ernst in Kühling/Buchner, General Data Protection Regulation Commentary, on Art. 3, para. 97).

The application of Article 3(2)(b) GDPR can therefore encompass a wide range of observation activities, with the EDPB particularly focusing on the following elements (cf. Guidelines 3/2018 on the territorial scope of the GDPR (Article 3) of the EDPB dated November 12, 2019, p. 23):

- Behavioral advertising
- Geolocation activities, particularly for marketing purposes
- Online tracking through the use of cookies or other tracking techniques such as fingerprinting
- Personalized dietary and health analysis services online
- CCTV
- Market research and other behavioral studies based on individual profiles
- Monitoring or regular reporting on a person's health status

Clearly, technologies used on the internet that capture users' internet activity data (e.g., through corresponding cookies or other user identifiers) should fall within the territorial scope of the regulation, provided that the captured data leads to a decision regarding the data subject or is used to personalize functionalities or content (e.g., personalized advertising, personalized recommendation features, or personalized search results) based on a profile of the person (cf. Meyerdierks in Moos/Schefzig/Arning, Practical Handbook GDPR including BDSG and specific use cases, Chap. 3, para. 67).

In particular, all forms of tracking and profiling on the internet through analytical tools fall under the provision, such as cookies that enable individual traceability of users or pursue purposes of individual advertising (Targeted Advertising) (cf. Ernst in Kühling/Buchner, General Data Protection Regulation

Commentary, on Art. 3, para. 98).

Here is the translation of the provided legal document text into English:

Even a first-time tracking process that may not be repeated with respect to the affected person can lead to the application of paragraph 2 lit. b of the GDPR (see Ernst in Kühling/Buchner, General Data Protection Regulation Commentary, on Art. 3, para. 96). This leads to the conclusion that companies without a branch in the EU, which direct their internet service exclusively to individuals outside the EU and operate it on servers outside the EU, can still fall within the territorial scope of the regulation if users from the EU access this service and the service offers personalization features based on behavioral profiles (see also the decision of June 2, 2022, GZ: D130.651, 2022-0.088.237; see Meyerdierks in Moos/Schefzig/Arning, Practical Handbook GDPR including BDSG and specific application cases, Chap. 3, para. 71). As can be inferred from the findings, as a result of visiting the website, cookies with unique, randomly generated values were set and read on the device of the affected person. The considerations outlined above can therefore also be applied to the present case. In conclusion, it should be noted that the territorial scope of the GDPR is opened – also considering the purpose of the regulation, which particularly aims to provide affected persons with the greatest possible protection of their data.

D.2. Regarding the jurisdiction of the data protection authority

Processing operations of a factual situation can be subject to both the provisions of Directive 2002/58/EC as amended (e-Privacy Directive) and the TKG 2021, as well as the GDPR. While the setting or reading of cookies is to be assessed according to the provisions of Art. 5 para. 3 of the e-Privacy Directive, the subsequent data processing falls within the scope of the GDPR (see the Guidelines 01/2020 of the EDPB on the processing of personal data in connection with connected vehicles and mobility-related applications Version 2.0 para. 15 and para. 53). This is also in line with the legal opinion of the CJEU in the case of Fashion ID. It is also assumed that as a result of the implementation of a social plugin on a website (this falls within the scope of the e-Privacy Directive), the transfer of the website visitor's data to Facebook Ireland Limited as well as the subsequent data processing falls within the scope of the (then) Directive 95/46 GDPR (see the judgment of the CJEU of July 29, 2019, C-40/17 para. 26 and particularly para. 85). The data protection authority is therefore competent for the present complaint, as a result of the setting or reading of cookies, a data transfer (at least IP addresses and cookie values) has taken place (see factual finding C.4) and the application of the GDPR is not excluded.

D.3. Processing of personal data

The data protection authority has already stated in the case J***Data Analytics – in line with the jurisprudence of the European Data Protection Supervisor (EDPS) – that cookies containing a unique, randomly generated value (random number) and set with the purpose of individualizing and excluding persons meet the definition of Art. 4 No. 1 GDPR. In particular, it can never be excluded that the cookie values and the IP address of a person's device are combined with additional information at some point in the processing chain, e.g., when the affected person registers on a website with their email address or real name (see the decision of April 22, 2022, GZ: 2022-0.298.191, available on the website www.dsb.gv.at; this legal opinion is confirmed, among others, by the ruling of the BVwG of May 12, 2023, GZ: W245 2252208-1; regarding the personal reference of “J***Data Analytics Cookies” also see the decision of the EDPS against the European Parliament of January 5, 2022, GZ: 2020-1013, p. 13). These considerations can be applied to the present case, as a result of visiting the website https://www.runningsport***.com/ on September 24, 2021, cookies with unique, randomly generated values were set and read on the device of the affected person (see factual finding C.4). Subsequently, the cookie values and IP address of the affected person's device were transmitted, for example, to the servers of the respective providers, e.g., J***Data (Cookie: J*ED) or The***infoExchange (Cookie: “*XCID”). Thus, the material scope of the GDPR is also fulfilled.

Regarding point 1

D.4. Regarding the notification obligation according to Art. 19 GDPR (Complaint Point A)

As established, the BG is the operator of the website in question and decides which cookies are set on its website (and consequently, which data processing is carried out; see factual finding C.2.). It follows that the BG qualifies as the data controller according to Art. 4 No. 7 GDPR for the data processing in question, as it decides on the purposes and means of the data processing. According to Art. 19 GDPR, the controller must inform all recipients to whom personal data have been disclosed of any deletion under Art. 17 para. 1 GDPR, unless this proves impossible or involves a disproportionate effort. As can be inferred from the findings, the BG has deleted the data of the affected person, but did not inform the recipients about the deletion (see factual findings C.5.). To be examined

This translation maintains the original meaning and important formatting cues as requested. therefore, it must be determined whether a deletion obligation that triggers the notification obligation under Art. 19 GDPR preceded the deletion that occurred:

The controller is obliged to delete the data in accordance with Art. 17 para. 1 GDPR, provided that one of the reasons mentioned in Art. 17 para. 1 lit. a to f leg. cit. applies and no exceptions according to Art. 17 para. 3 GDPR are present.

The bP criticizes in this context – in essence – a deletion obligation due to unlawful data processing (Art. 17 para. 1 lit. d GDPR).

As already detailed above, the data protection authority is responsible for reviewing those processing operations that occur after the setting or reading of cookies in accordance with Art. 5 para. 3 of the e-Privacy Directive (“subsequent data processing”).

However, the first step is to verify whether valid consent was obtained for the setting or reading of cookies. According to the case law of the CJEU, a reference to a provision of Art. 6 para. 1 GDPR only comes into consideration in the interplay between the e-Privacy Directive and GDPR if the conditions for lawful processing under the e-Privacy Directive are also met (Judgment of June 17, 2021, C-597/19, from para. 97).

In the present case, however, there is no valid consent and thus no lawful processing under the e-Privacy Directive and GDPR, as there was no option at the first level of the cookie banner (the request for consent) to refuse consent or to access the website without giving consent (see factual finding C.3.).

Thus, it cannot be assumed, in particular, that there was an unequivocal expression of will in accordance with Art. 4 No. 11 GDPR (see also point D.8. b) of the present decision regarding the design of a request for consent).

The consequence of unlawful processing is, according to Art. 17 para. 1 lit. d GDPR, the obligation of the controller to delete the data. No exception under Art. 17 para. 3 GDPR is present.

This is again associated with the obligation, in accordance with Art. 19 first sentence GDPR, to inform the recipients – which in this case are particularly the providers of the tools that the BG has implemented on its website – about the deletion.

For the proof of compliance with the notification obligation stipulated in Art. 19 GDPR, the BG bears the burden of proof according to Art. 5 para. 2 (in conjunction with Art. 24 para. 1) leg. cit. according to the case law of the CJEU. Such proof was not provided by the BG in the course of the present proceedings – despite the granted opportunity and explicit inquiry by the data protection authority (see the judgment of the CJEU of July 4, 2023, C-252/21 para. 95).

The BG has also at no time relied on an exception under Art. 19 first sentence GDPR and it is also not apparent how the notification in the context of an individual case would represent a disproportionate effort.

Considering the fact that the data of the bP – for the reasons outlined above – were unlawfully processed, the fulfillment of the information obligation according to Art. 19 GDPR also seems warranted, and the issue of disproportionality, in the view of the data protection authority, is not applicable.

In this context, a performance order was to be issued accordingly.

To point 2

D.5. On the right to deletion (complaint point A)

As established, the BG currently does not store the information that can be considered personal data of the bP – i.e., the IP address and the cookie values of the bP's terminal device.

According to the case law of the BVwG, there is also no subjective right to establish that the rights of the affected persons – here: the right to deletion – were possibly addressed too late (see the decision of the BVwG of January 31, 2020, GZ: W258 2226305-1 and the further evidence cited there).

At least at the time of the decision, there is therefore no assumption of a violation of Art. 17 GDPR.

D.6. On the request for an order against the BG to cease unlawful processing (complaint point B)

Furthermore, the bP has requested that the BG be ordered to cease unlawful processing.

According to Art. 77 para. 1 GDPR, every data subject has the right to lodge a complaint with a supervisory authority, in particular in the member state of their habitual residence, their workplace, or the place of the alleged infringement, if the data subject believes that the processing of their personal data violates this regulation.

From the wording of Art. 77 para. 1 GDPR, it is evident that any requests made within the framework of a complaint procedure—assuming their admissibility—must relate to the person of the complaining party (“personal data concerning them”). As previously stated, the BG currently does not store the data in question related to the complainant, so no remedial authority can be exercised concerning the personal data of the complainant. In light of the conclusive nature of the remedial powers under Art. 58 para. 2 GDPR (see again the ruling of the VwGH of September 1, 2022, Ra 2022/04/0066) and the wording of Art. 77 para. 1 GDPR and § 24 para. 1 DSG (violates and not: “has violated” or “will violate”; English version of the GDPR: “infringes”, French version of the GDPR: “constitue”), no order can be issued in the context of a complaint procedure that relates to data processing pro futuro (i.e., in the event that the complainant accesses the website again in the future). Thus, there is also no need to address the abstractly formulated violations of the complainant in connection with the cookie banner. Such violations of the GDPR are to be addressed ex officio if necessary.

To the extent that the complainant finally argues that a competent supervisory authority can also issue an order that “goes beyond the personal data of the complainant,” it must be countered that such a “popular complaint” (i.e., a complaint that does not only concern the person of the complainant) is inadmissible (see the decision of the DSB of November 26, 2018, GZ: DSB-D216.697/0011-DSB/2018).

From another perspective, there would be no room for the possibility provided for in Art. 80 para. 2 GDPR for Member States to provide a right of complaint for data protection organizations that exists independently of a mandate from a specifically affected person. However, the Austrian legislator has not made use of this possibility at this time.

Regarding Point 3

D.7. On the request of the complainant dated December 30, 2022, for a determination of an alleged violation of the right to confidentiality (Complaint Point C)

According to § 24 para. 4 DSG, the claim for the processing of a complaint expires if the complainant does not submit it within one year after becoming aware of the event giving rise to the complaint, but at the latest within three years after the event allegedly occurred. Late complaints are to be rejected in accordance with § 24 para. 4 last sentence DSG.

§ 24 para. 4 DSG refers to an event giving rise to the complaint as the trigger for the running of the deadlines. In this case, the visit to the website https://www.runningsport***.com/ on September 24, 2021 – and the associated data processing – is considered such an event.

The submission of the supplementary request on December 30, 2022, i.e., more than a year after becoming aware of the event giving rise to the complaint (website visit), is therefore deemed late, and the complainant's claim for the processing of this request had already expired at the time of the supplement, which is why the complaint in this regard was to be rejected in accordance with § 24 para. 4 DSG.

In this context, it should be noted that according to established case law of the VwGH, deficiencies in a submission that do not affect its completeness but rather its chances of success are not subject to a

request for rectification (see, among many, the decision of the VwGH of April 20, 2022, Ro 2018/06/0001).

Neither the GDPR nor the DSG implies that in the case of asserting a violation of, for example, Art. 17 GDPR, there must simultaneously be a request to the data protection authority that a past legal violation be established. In other words: the subject of the complaint can also solely be a violation of, for example, Art. 17 GDPR, and it is not necessary to simultaneously assert a violation of § 1 para. 1 DSG or Art. 6 para. 1 GDPR.

Thus, in this case, a complete complaint with clear requests was submitted with the original submission dated August 9, 2022, which was therefore not subject to a request for rectification.

Regarding Point 4

D.8. On the performance order

a) General

The data protection authority has remedial powers under Art. 58 para. 2 lit. d GDPR that allow it to instruct a controller to change or carry out processing operations in a specific manner and within a specific timeframe.

According to the case law of the BVwG, it is permissible for the data protection authority to also ex officio exercise its powers as defined in Art. 58 para. 2 GDPR in the complaint procedure (see the dg. ruling of November 16, 2022, ZI. W274 2237056-1/8E).

The considerations of the BVwG are also in line with the case law of the CJEU, according to which a supervisory authority is obliged to use its remedial powers in the event of identified deficiencies (see the judgment of the CJEU of July 16, 2020, C-311/18, para. 111).

Although the complaint in question was ultimately dismissed, among other reasons, because the data of the bP has since been deleted, this does not change the fact that, in the opinion of the data protection authority, the cookie banner in question (or specifically: the request for consent) does not comply with the requirements of the GDPR.

For the assessment of how the cookie banner and the interaction options are to be understood, the figure of an average informed, attentive, and understanding consumer is to be applied (cf. the judgment of the CJEU of July 16, 1998, C-210/96 [Gut Springenheide GmbH] para. 37; the decision of the BVwG of December 13, 2022, GZ: W214 2234934-1; Article 29 Data Protection Working Party, Guidelines on Consent under Regulation 2016/67, WP259 rev.01, 17/DE, p. 16; Greve in Sydow, Commentary Art. 12 para. 11; Illibauer in Knyrim, DataKomm Art. 12 para. 39; regarding the DSG 2000 also Jahnelt, Handbook para. 7/22 with references).

Based on this standard, the following can be stated for the case at hand:

b) Regarding the performance order according to 4. a) of the ruling

The granting of consent for cookies must be as easy as its withdrawal (cf. Art. 7 para. 3 GDPR as well as the judgment of the CJEU of October 27, 2022, C-129/21 para. 65).

In conclusion, the non-granting of consent (or closing the cookie banner and continuing to surf without consent) must also be as easy as granting consent. Therefore, no more interactions with the cookie banner may be required for the non-granting of consent (or closing the cookie banner and continuing to surf without consent) than for granting consent.

In the present case, a cookie banner is used as a request for consent for the use of cookies (and the associated processing of personal data). Specifically, on the first level of the cookie banner, there is only the option to accept the cookie banner ("ACCEPT"). If one wishes to refuse consent, it is necessary to decline consent ("Decline") under the option "LEARN MORE" on the second level under "Cookies Choices."

Affected individuals cannot be required to make the decision not to grant consent on a button (such as a cookie banner) only on a second or third level, as in this case, it cannot be assumed that there is an unambiguous expression of will within the meaning of Art. 4 No. 11 GDPR.

In particular, it cannot be ruled out that affected individuals selected the “Accept” option simply because, from their perspective, there was no immediate option to “Decline” available or because they did not even recognize that a “Decline” option was available due to the design. The BG bears the burden of proof for the validity of any consent (cf. the judgment of the CJEU of July 4, 2023, C-252/21 para. 95).

In addition to the aforementioned case law of the CJEU, it should be noted that a procedure in which affected individuals are required to perform more interactions for the non-granting of consent than for granting consent does not comply with the principle of data processing in good faith (“fairly processed”) according to Art. 5 para. 1 lit. a GDPR nor with the principle of data protection by design (“privacy by design”) according to Art. 25 para. 1 of the same regulation. This circumstance also supports the interpretation of Art. 4 No. 11 in conjunction with Art. 7 GDPR advocated by the data protection authority.

This view ultimately aligns with the opinion of the EDSA (cf. Report of the work undertaken by the Cookie Banner Taskforce, pp. 4 f, available at https://edpb.europa.eu/our-work-tools/our-documents/report/report-work-undertaken-cookie-banner-taskforce_en).

A guideline for a “Decline” option on the first level is furthermore that it is designed to be visually equivalent to the “Accept” option. This means in particular that both options must be equally visible. For the visual design of the cookie banner, the “FAQs on Cookies and Data Protection” can be used as a guide (available on the website of the data protection authority, cf. in particular Question 7 and Question 8).

c) Regarding the performance order according to 4. b) of the ruling

As already stated, granting consent must be as easy as withdrawing it (cf. again Art. 7 para. 3 GDPR as well as the judgment of the CJEU of October 27, 2022, C-129/21 para. 65). In the online context, it must therefore be clearly evident where or how consent can be withdrawn.

In the present case, there is no simple and clearly visible indication in the cookie banner itself that explains where consent can be withdrawn.

Although there is a “Cookie Choices” button at the bottom of the website

https://www.runningsport***.com/ and various preferences regarding cookies as well as the withdrawal can be made in the menu (see factual finding C.6.), this alone is not sufficient, as it must already be clear from the cookie banner, i.e., at the time of granting consent, how it can be withdrawn.

In particular, it cannot be expected of an affected person to search the website for the withdrawal.

The BG will therefore need to implement a solution in which it is already evident in the cookie banner where consent can be withdrawn.

d) Regarding the performance order according to 4. c) of the ruling

The use of cookies (and the associated processing of personal data), which are not technically necessary for the use of a website, requires prior consent (cf. Art. 29 WP Opinion 04/2012 on Cookie Consent Exemption, WP 194, 00879/12/EN p. 9 et seq.). According to the case law of the BVwG, Article 5(3) of Directive 2002/58/EC as amended (in conjunction with §165(3) TKG 2021) is also not to be interpreted in the sense of “economic necessity.” This means that, for example, advertising cookies for delivering personalized advertising do not become “technically necessary” merely because delivering personalized advertising is necessary for financing the operation of the website (see the ruling of the BVwG of March 12, 2019, GZ: W214 2223400-1, as well as the “FAQ on Cookies and Data Protection,” available on the website of the Data Protection Authority, particularly Question 5).

It should be noted that the exception contained in § 165(3) TKG 2021, “provision of a service explicitly requested by the user,” (as well as the associated formulation “absolutely necessary”) must be interpreted restrictively. For the permissibility of cookies, this means that they must be absolutely necessary for the provision of the service and there must be a clear connection with the service explicitly requested by the participant or user (cf. Riesz in Riesz/Schilchegger (eds.), TKG (2016) § 96 Rn 48). Furthermore, the aforementioned statement of the former Art. 29 WP indicates that it must be

assessed what is absolutely necessary from the user's perspective, not that of the service provider.

The BG qualifies analysis cookies, e.g., J***Data Analytics, as technically necessary cookies ("strictly necessary cookies"). However, it must be countered that analysis cookies, based on the considerations presented, cannot be classified as technically necessary cookies (cf. regarding J***Data Analytics and the personal reference of J***Data Analytics cookies also the ruling of the BVwG of May 12, 2023, W245 2252208-1/36E and W245 2252221-1/30E).

The BG will therefore need to adjust its website accordingly so that prior consent is obtained for the use of such analysis cookies and the associated data processing.

It was therefore decided accordingly.